TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
SEPTEMBER 29, 2025
MINUTES

STAFF REPORT

Present: Megan Stevens, Vice-chair, Giles Branch, Megan Stevens, Elliott Barrow, Andrea Kornick, Cheryll Woods-Flowers, Joan Spier.
Absent: Stephen Wood.
Staff: Michael Robertson, Kara Browder, Eddie Bernard, David Pagliarini, Lynnette Lynes

Ms. Stevens called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Branch moved for approval of the agenda. Ms. Woods-Flowers seconded the motion. All in favor.

B. Approval of Minutes

Mr. Branch moved for approval of the minutes. Ms. Spier seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments and no correspondence, Ms. Stevens closed public comment and continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

Ms. Stevens reviewed the procedures and administered the oath.

G. Business

1. **Case V-29-25, 1153 N Shadow Drive, TMS# 535-16-00-072**, Request for relief from §156.702 to allow the removal of a 34'' Live Oak Tree.

Mr. Robertson reviewed staff comments with the Board.

- Mr. John Eisen, owner, reviewed the request with the Board.

- Mr. Austin Sneed, 1149 N Shadow Drive, stated that he has had difficulty in obtaining homeowner's insurance due to the tree hanging over their home. He stated that he supports approval for removal of the tree.

- Mr. David Quick, 1502 Village Square, suggested that the live oak should be preserved. He suggested that the root might be able to be pruned and the tree preserved.

- Mr. Seth Eisen, Huger, stated that as a state-licensed builder, he believes that the owners have done all required to protect the tree and try to preserve the tree. He stated that the engineering report indicates that the roots are damaging the home. Another issue is that the tree hangs over the neighbor's house as well. He suggested that while trees should be preserved, this is an instance where the tree should be removed for safety and structural soundness of the home.

- Mr. Gerald Benoit, arborist for the owner, stated that in inspecting the tree, is that the root system cannot be removed from under the home because they are integral to keeping the tree erect. He also stated that the weight of the crown is hanging over the neighbor's home.

- There being no further comments, Ms. Stevens closed public comment.

- Mr. Eisen provided a rebuttal regarding the requirement to mitigate the removal of the tree and that mitigation should not be required because of the damage to the home.

- *Mr. Barrow moved for denial based on the findings that the staff arborist indicates that the two four-inch tree roots can be cut without damage to the tree; the tree is in good condition; there was no investigation by anyone unbiased about pruning the roots; there was no unbiased testimony regarding whether the crack in the foundation and walls could be repaired; the issue of insurance coverage of the neighboring property is not viable justification for approval of the variance; all four criteria for a variance have not been met as denial would not unreasonably restrict utilization of the property and the*

public good would be damaged with removal of a historic tree in good health and damage the character of the neighborhood. Ms. Spier seconded the motion. Motion passed on a 4 to 2 vote with Ms. Woods-Flowers, Mr. Barrow, Mr. Branch, and Ms. Spier in favor; Ms. Kornick and Ms. Stevens opposed.

2. **Case V-32-25, 253 Coinbow Circle, TMS# 514-07-00-063,** Request for relief from §156.702 to waive the mitigation required for a 32'' Laurel Oak and a 29'' Laurel Oak.

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Arthur Hamrick and Ms. Becky Hamrick, owners, reviewed the request with the Board.

- There being no comments, Ms. Stevens closed public comment.

- *Mr. Branch moved for denial based on the findings that the conditions apply to other properties in the vicinity as there are other properties that may have at some point a tree in poor condition and the ordinance should be upheld. Ms. Woods-Flowers seconded the motion. Motion passed on a 5 to 1 vote with Ms. Kornick, Ms. Woods-Flowers, Mr. Barrow, Mr. Branch, and Ms. Spier in favor; Ms. Stevens opposed.*

3. **Case V-33-25, 217 Church Street, TMS# 517-15-00-025**, Request for relief from §156.218(G)(4)(c)(2) to allow the portion of the property comprised of marsh to be used for the calculation of the building area ratio (BAR) requirement. CORRESPONDENCE

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Joel Adrian, architect, reviewed the request with the Board.

- Mr. Derek Hogarty, 221 Church, stated that he is a general contractor and admires the historic property throughout the Town. He stated that he has reviewed the proposed plans and is in favor of the request.

- Ms. Stevens administered the oath to Mr. Martschink.

- Mr. Miles Martschink, 135 Toomer Lane, stated that he submitted correspondence for this item and expressed concern with larger homes being built in the historic district. He suggested that allowing use of the marshland would mean larger homes could be allowed.

- Mr. Doug Henderson, owner, stated that looking at the twenty contiguous properties in historic district, the average square footage is approximately 3656 square feet of heated space. He stated that he is asking to have the same square footage as the surrounding property.

- Mr. Adrian rebutted that the property was previously allowed to include the marsh square footage.

- Mr. Louis Horton, 138 Live Oak, expressed concern with stormwater runoff and suggested that this should be taken into consideration. He stated that the marsh would potentially be under water and that the high ground.

- Mr. Adrian further rebutted that the stormwater issues would be handled through staff review and approved prior to issuance of building permit. He further noted that

- There being no further comments, Ms. Stevens closed public comment.

- *Mr. Barrow moved for denial based on the findings that the utilization of the property is not restricted as there is an existing home on the property and the desired proposed addition is equal to or larger than the existing home; profitability of the property cannot be considered in approval of the variance; and approval of the variance would be a detriment to the public good as it could affect area flooding and would be a detriment to the character of the neighborhood. Ms. Spier seconded the motion. All in favor.*

There being no further business, the meeting adjourned at 7:42 pm.

Submitted by,
L. Lynes
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